6 Those ships using separate fuel oils to comply with paragraph 4 of this regulation and entering or leaving an emission control area set forth in paragraph 3 of this regulation shall carry a written procedure showing how the fuel oil changeover is to be done, allowing sufficient time for the fuel oil service system to be fully flushed of all fuel oils exceeding the applicable sulphur content specified in paragraph 4 of this regulation prior to entry into an emission control area. The volume of low sulphur fuel oils in each tank as well as the date, time and position of the ship when any fuel oil changeover operation is completed prior to the entry into an emission control area or commenced after exit from such an area shall be recorded in such logbook or electronic record book as prescribed by the Administration.

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SOURCE: MEPC.328(76).pdf
control area or commenced after exit from such an area shall be recorded in such logbook or electronic record book as prescribed by the Administration.

7 During the first 12 months immediately following entry into force of an amendment designating a specific emission control area under paragraph 3 of this regulation, ships operating in that emission control area are exempt from the requirements in paragraphs 4 and 6 of this regulation and from the requirements of paragraph 5 of this regulation insofar as they relate to paragraph 4 of this regulation.

In-use and onboard fuel oil sampling and testing

8 If the competent authority of a Party requires the in -use or onboard sample to be analysed, it shall be done in accordance with the verification procedure set forth in appendix VI to this Annex to determine whether the fuel oil being used or carried for us e on board meets the requirements in paragraph 1 or paragraph 4 of this regulation. The in-use sample shall be drawn taking into account the guidelines developed by the Organization. The onboard sample shall be drawn taking into account the guidelines developed by the Organization.

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SOURCE: MEPC.328(76).pdf
drawn taking into account the guidelines developed by the Organization. The onboard sample shall be drawn taking into account the guidelines developed by the Organization.

9 The sample shall be sealed by the representative of the competent authority with a unique means of identification installed in the presence of the ship 's representative. The ship shall be given the option of retaining a duplicate sample.

In-use fuel oil sampling point

10 For each ship subject to regulations 5 and 6 of this Annex, sampling point(s) shall be fitted or designated for the purpose of taking representative samples of the fuel oil being used on board the ship taking into account the guidelines developed by the Organization.

11 For a ship constructed before 1 April 2022, the sampling point(s) referred to in paragraph 10 shall be fitted or designated not later than the first renewal survey as identified in regulation 5.1.2 of this Annex on or after 1 April 2023.

12 The requirements of paragraphs 10 and 11 above are not applicable to a fuel oil service system for a low -flashpoint fuel for combustion purposes for propulsion or operation

on board the ship.

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SOURCE: MEPC.328(76).pdf
12 The requirements of paragraphs 10 and 11 above are not applicable to a fuel oil service system for a low -flashpoint fuel for combustion purposes for propulsion or operation on board the ship.

13 The competent authority of a Party shall, as appropriate, utilize the sampling point(s) which is(are) fitted or designated for the purpose of taking representative sample(s) of the fuel oil being used on board in order to verify that the fuel oil complies with this regulation. Taking fuel oil samples by the competent authority of the Party shall be performed as expeditiously as possible without causing the ship to be unduly delayed.

Regulation 15
Volatile organic compounds

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 28 -

1 If the emissions of volatile organic compounds (VOCs) from a tanker are to be regulated in a port or ports or a terminal or terminals under the jurisdiction of a Party, they shall be regulated in accordance with the provisions of this regulation.

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SOURCE: MEPC.328(76).pdf
regulated in a port or ports or a terminal or terminals under the jurisdiction of a Party, they shall be regulated in accordance with the provisions of this regulation.

2 A Party regulating tank ers for VOC emissions shall submit a notification to the Organization. This notification shall include information on the size of tankers to be controlled, the cargoes requiring vapour emission control systems and the effective date of such control. The notification shall be submitted at least six months before the effective date.

3 A Party that designates ports or terminals at which VOC emissions from tankers are to be regulated shall ensure that vapour emission control systems, approved by that Party taking into account the safety standards for such systems developed by the Organization, are provided in any designated port and terminal and are operated safely and in a manner so as to avoid undue delay to a ship.

4 The Organization shall circulate a list of the ports and terminals designated by Parties to other Parties and Member States of the Organization for their information.

5 A tanker to which paragraph 1 of this regulation applies shall be provided with a

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SOURCE: MEPC.328(76).pdf
to other Parties and Member States of the Organization for their information.

5 A tanker to which paragraph 1 of this regulation applies shall be provided with a vapour emission collection system approved by the Administration taking into account the safety standards for such systems developed by the Organization, and shall use this system during the loading of relevant cargoes. A port or terminal that has installed vapour emission control systems in accordance with this regulation may accept tankers that are not fitted with vapour collection systems for a period of three years after the effective date identified in paragraph 2 of this regulation.

6 A tanker carrying crude oil shall have on board and implement a VOC management plan approved by the Administration. Such a plan shall be prepared taking into account the guidelines developed by the Organization. The plan shall be specific to each ship and shall at least:

.1 provide written procedures for minimizing VOC emissions during the loading, sea passage and discharge of cargo;

.2 give consideration to the additional VOC generated by crude oil washing;

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SOURCE: MEPC.328(76).pdf
least:

.1 provide written procedures for minimizing VOC emissions during the loading, sea passage and discharge of cargo;

.2 give consideration to the additional VOC generated by crude oil washing;

.3 identify a person responsible for implementing the plan; and

.4 for ships on international voyages, be written in the working language of the master and officers and, if the working language of the master and officers is not English, French or Spanish, include a translation into one of these languages.

7 This regulation shall also apply to gas carriers only if the types of loading and containment systems allow safe retention of non-methane VOCs on board or their safe return ashore.

Regulation 16
Shipboard incineration

1 Except as provided in paragraph 4 of this regulation, shipboard incineration shall be allowed only in a shipboard incinerator.
2 Shipboard incineration of the following substances shall be prohibited:

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 29 -

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SOURCE: MEPC.328(76).pdf

.1 residues of cargoes subject to Annex I, II or III or related contaminated packing materials;

.2 polychlorinated biphenyls (PCBs);

.3 garbage, as defined by Annex V, containing more than traces of heavy metals;

.4 refined petroleum products containing halogen compounds;

.5 sewage sludge and sludge oil n either of which is generated on board the ship; and

.6 exhaust gas cleaning system residues.

3 Shipboard incineration of polyvinyl chlorides (PVCs) shall be prohibited, except in shipboard incinerators for which IMO Type Approval Certificates have been issued.